

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX vs COUNTY OF RIVERSIDE	DEMURRER – CITY OF CALIMESA

Tentative Ruling:

Moving party: Defendant City of Calimesa

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action filed December 29, 2025 by Plaintiffs Madeline Fox, via GaL Melissa Fox; Lauren Hinkley; Cory Hinkley, and the Estate of Gavin Hinkley against Defendants County of Riverside, Glynn Wilburn, Southern California Edison Company, City of Beaumont, City of Calimesa, CalTrans, and American Medical Response of Inland Empire alleging 8 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bad faith/gross negligence in emergency dispatch, 7) negligence, and 8) survival action.

On April 30, 2026, Plaintiffs filed a First Amended Complaint alleging 7 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bath faith/gross negligence in emergency dispatch, and 7) wrongful death. Thereafter, CalTrans was dismissed by Plaintiffs. The name of Defendant American Medical was corrected to American Medical Response of Southern California.

Defendant City of Calimesa demurs to the four causes of action alleged against them in the FAC, the 2nd, 4th, 6th, and 7th causes of action on the grounds that they are uncertain and/or fail to state sufficient facts to constitute a cause of action against them. City asserts that the dangerous condition of public property claim fails to allege any facts showing that the City owned or controlled the intersection or that any City employee created a dangerous condition or that City had notice of one, as distinct from the other public entities sued. As to the 4th cause of action, City asserts it is uncertain as it fails to identify any statute authorizing the claim sufficient to overcome the immunity provision of Gov. Code section 815. As to the 6th cause of action, City asserts it is uncertain as there is no statutory basis for the claim because health and Safety Code section 1799.107 immunizes the conduct absent facts showing bad faith or gross negligence as the FAC does not allege any act of any City employee that could give rise to vicarious liability. As to the 7th cause of action, City asserts it fails as it is wholly derivative of the other causes of action and alleges no independent statutory basis for the City's liability.

In opposition, Plaintiffs asserts that each of the claims are properly alleged with sufficient facts to survive demurrer. Plaintiffs assert that they adequately pled dispatch conduct, gross negligence and bad faith. Further, Plaintiffs assert that they properly alleged a special relationship duty, which was breached by City.

In reply, City asserts that the opposition improperly seeks to incorporate documents and facts outside the pleadings. Further, City asserts that the extrinsic evidence would not cure the FAC's defects. City asserts that the 6th cause of action still fails to identify any actionable City dispatch conduct. As to the 4th cause of action is a barred common-law theory as there is no claimed City employee liability.

Procedural Issues

Meet and Confer Requirements:

CCP §430.41(a) states that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP §430.41(a).) Further, the moving party is required to submit a declaration that “the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (CCP §430.41(a)(3)(B).)

The declaration submitted with the moving papers indicates that Defendants’ counsel made several attempts to meet and confer, but that Plaintiffs’ counsel failed to respond.

The Court admonishes counsel for Plaintiff, Robert Reagan, and reminds counsel that the court could consider an OSC re: sanctions as to Plaintiffs’ counsel for failure to respond to good faith meet and confer attempts.

Evidentiary Issues

Declaration of Attorney Robert Reagan:

Plaintiffs submitted the Declaration of Attorney Robert Reagan in support of its opposition. This declaration seeks to improperly submit evidence. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.) Accordingly, the court strikes the declaration pursuant to its discretion under CCP section 436(b).

The FAC alleges in pertinent part as follows:

On September 6, 2025, Riverside County Sheriff's Deputy WILBURN was driving a patrol vehicle in the course and scope of his employment with the County of Riverside. Wilburn was traveling at or in excess of 71.9 miles per hour, approaching a red light, when he crashed into the vehicle that was lawfully negotiating a left turn, killing the driver Gavin Hinckley and leaving Madeline Fox suffering life-threatening permanent injuries. The accident occurred at the intersection of Cherry Valley Boulevard and Roberts Street in the County of Riverside.

The location of the accident was owned or controlled by County, City of Beaumont and the City of Calimesa and was in a dangerous condition.

After the accident, City of Calimesa took affirmative steps to divert life-saving medical care away from Gavin and Madeline. By voluntarily undertaking the responsibilities to manage, control, and secure the scene of the collision, City of Calimesa created a special relationship with Madeline and Gavin giving rise to a duty of care to perform life-saving medical care with reasonable diligence and without increasing the risk of harm to them.

City of Calimesa owed a duty to Madeline and Gavin to exercise reasonable care in the receipt, processing, and dispatch of emergency services. After the collision, City of Calimesa, acted in bad faith and/or with gross negligence in the dispatch of emergency personnel to the scene. Despite the severe, life-threatening injuries suffered by Madeline and Gavin City of Calimesa demonstrated an extreme departure from the standard of care by failing to properly categorize the severity of their medical emergency, failing to follow established protocols, failing to prioritize medical aid to them over Wilburn's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. This conduct constituted a systemic and reckless disregard for the lives of Madeline and Gavin and were a substantial factor and the legal and proximate cause of Madeline and Gavin's injuries.

As a direct and legal result of the wrongful death of Gavin, the HINKLEYS have been deprived of the love, companionship, comfort, care, assistance, protection, affection, society, and moral support of their son, and have sustained other economic and non-economic damages available under California wrongful death law, including loss of financial support, loss of gifts and benefits, and loss of household services in an amount to be determined according to proof at the time of trial.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Generally a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) None of the challenged causes of action are uncertain.

2nd Cause of Action for Dangerous Condition of Public Property: The elements to establish a cause of action for dangerous condition of public property are: 1) the incident occurred on public property as defined in G.C. §830(c), 2) the property was in a dangerous condition at the time of the injury, 3) the injury was proximately caused by the dangerous condition, 4) the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and 5) the public entity had actual or constructive notice under §835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 146; G.C. §835.)

Public property “means real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity.” (Gov. Code §830(c).) “ ‘Dangerous condition means a condition of property that creates a substantial (a distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.’ ” (Gov. Code §830(a).)

The FAC fails to set forth facts sufficient to constitute a dangerous condition of public property against City of Calimesa. Accordingly, the court sustains with 21 days leave to amend, as to the 2nd cause of action.

4th Cause of Action for Negligent Failure to Protect/Voluntary Undertaking (against both County and Wilburn): The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) “ ‘Although the legal conclusion that ‘a duty’ exists is neither necessary nor proper in a complaint, facts which cause it to arise (or from which it is ‘inferred’) are essential to the cause of action.’ [Citations.] A complaint which lacks facts to show that a duty of care was owed is fatally defective. [Citation.]” (*Wise v. Superior Court* (1990) 222 Cal.App.3d 1008, 1013.)

Ultimately, this claim is based on a voluntary undertaking which is based on the premise that City did not have a duty to handle the collision scene, but once they did, they owed a duty, based on a special relationship, not to place persons in peril or increase the risk of harm. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 24.) The FAC does not allege that anything City did at the collision scene created a special relationship that created a duty to affirmatively act to assist or protect Gavin or Madeline. Accordingly, the court sustains the demurrer to the 4th cause of action with 21 days leave to amend.

6th Cause of Action for Bad Faith/Gross Negligence in Emergency Dispatch (against County): Pursuant to California Health and Safety Code Section 1799.107(b), public entities enjoy qualified immunity when it comes to emergency dispatch services. In order for plaintiffs to overcome this statutory immunity, plaintiffs must plead specific factual allegations that constitute gross negligence – defined as “the want of even scant care or an extreme departure from the ordinary standard of conduct.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175.) Gross negligence is a significantly higher standard than ordinary negligence and requires that the conduct fall “greatly below the standard established by law for the protection of others.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.) California Courts have held that gross negligence requires more than a procedural misstep, miscommunication or delay. It requires conduct that is egregious in nature, conduct that is done deliberately or with reckless disregard. Mere errors in judgment, protocol deviations, and ordinary dispatch deficiencies do not meet the heightened bar of gross negligence. (See *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051; *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318.) The FAC does not state sufficient facts to state a cause of action for bad faith/gross negligence in emergency dispatch. Accordingly, the court sustains the demurrer to the 6th cause of action with 21 days leave to amend.

7th Cause of Action for Wrongful Death: A cause of action for wrongful death is a statutory claim that compensates specified heirs of the decedent for losses suffered as a result of a decedent’s death. (CCP §§ 377.60-377.62; *LAOSD Asbestos Cases* (2018)

28 Cal.App.5th 862, 872.) The elements of a wrongful death claim are: (1) a tort (negligence or other wrongful act); (2) resulting death of another person; and (3) damages, consisting of the pecuniary loss suffered by the heirs. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) Facts in support of each of the requirements of a statute upon which a cause of action is based must be pleaded. (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.)

The FAC fails to state a claim for a tort upon which this claim can stand. Accordingly, the court sustains with 21 days leave to amend as to the 7th cause of action.